

SENATE BILL 1657

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Section 1-3-105; Title 5; Title 6; Title 7; Title 13, Chapter 7; Title 43; Title 68 and Title 69, relative to waste from waste water facilities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 5-1-118(b), is amended by deleting the subsection and substituting:

(1) Except as provided in subdivision (b)(2), nothing in this part authorizes counties to prohibit or regulate normal agricultural activities.

(2) A county may authorize the application of sludge originating from a waste water treatment or processing facility to agricultural land located within the unincorporated areas of the county by adopting a resolution by a two-thirds (2/3) vote of the county legislative body that establishes a tipping fee on each ton of sludge that is applied to agricultural land in the unincorporated areas of the county. The fee must be collected by the operator of the waste water treatment or processing facility that generated the sludge and remitted to the county in which the sludge will be applied to agricultural land. Revenue from a tipping fee established pursuant to this subdivision (b)(2) must be expended only for the purpose of constructing and maintaining waste water treatment or processing facilities in the county to which the fee is remitted.

SECTION 2. Tennessee Code Annotated, Section 5-1-118(c)(2), is amended by deleting the subdivision and substituting:

(2) Except as provided in subdivision (b)(2), the powers granted by § 6-2-201(22) and (23) shall not apply to those activities, businesses, or uses of property and business occupations and practices that are subject to regulation pursuant to title 57,

chapters 5 and 6; title 59, chapter 8; title 60, chapter 1; title 68, chapters 201-221; or title 69, chapters 3, 7, 10, and 11.

SECTION 3. Tennessee Code Annotated, Title 6, Chapter 54, Part 1, is amended by adding the following as a new section:

Notwithstanding a law to the contrary, a municipality may authorize the application of sludge originating from a waste water treatment or processing facility to agricultural land located within its municipal boundaries by adopting a resolution by a two-thirds (2/3) vote of the municipal legislative body that establishes a tipping fee on each ton of sludge that is applied to agricultural land in the municipality. The fee must be collected by the operator of the waste water treatment or processing facility that generated the sludge and remitted to the municipality in which the sludge will be applied to agricultural land. Revenue from a tipping fee established pursuant to this subdivision (b)(2) must be expended only for the purpose of constructing and maintaining waste water treatment or processing facilities in the municipality to which the fee is remitted.

SECTION 4. Tennessee Code Annotated, Title 7, Chapter 1, Part 1, is amended by adding the following as a new section:

Notwithstanding a law to the contrary, a metropolitan government may authorize the application of sludge originating from a waste water treatment or processing facility to agricultural land located within its boundaries by adopting a resolution by a two-thirds (2/3) vote of the governing body that establishes a tipping fee on each ton of sludge that is applied to agricultural land in the metropolitan government. The fee must be collected by the operator of the waste water treatment or processing facility that generated the sludge and remitted to the metropolitan government in which the sludge will be applied to agricultural land. Revenue from a tipping fee established pursuant to this subdivision (b)(2) must be expended only for the purpose of constructing and maintaining waste

water treatment or processing facilities in the metropolitan government to which the fee is remitted.

SECTION 5. Tennessee Code Annotated, Title 69, Chapter 3, Part 1, is amended by adding the following as a new section:

(a) No person shall apply sludge originating from a waste water treatment or processing facility to agricultural land located in this state, unless:

(1) The land is located in jurisdiction that has approved such application pursuant to § 5-1-118(b)(2), Section 3 of this act, or Section 4 of this act; or

(2) The person is acting pursuant to a valid permit issued pursuant to this part.

(b) The commissioner shall not issue or renew a permit that authorizes the permittee to apply sludge originating from a waste water treatment or processing facility to agricultural land located in this state, unless the land is located in a jurisdiction that has approved an application pursuant to § 5-1-118(b)(2), Section 3 of this act, or Section 4 of this act.

SECTION 6. Sections 1-4 of this act take effect upon becoming a law, the public welfare requiring it. Section 5 of this act takes effect July 1, 2026, the public welfare requiring it.